

TENTATIVE RULINGS

FOR: July 16, 2026

If you do not see a tentative ruling for a scheduled matter, then attendance at the hearing is required.

Remote appearances via Zoom are optional. Please use Zoom at the links listed below.

If you have cases scheduled in both courtrooms at the same time, first log-in to the Zoom session for the department that has your quickest matter(s), and upon check-in, ask the clerk to email the clerk in the other department to advise that you will be late to the other Zoom session.

Dept. A Zoom

Join by Video

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Effective immediately, Department A no longer permits remote Zoom appearance by telephone.

Dept. B Zoom

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Effective immediately, Department A no longer permits remote Zoom appearance by telephone.

Court Reporting Services – The Court does not provide official court reporters in proceedings for which such services are not legally mandated. Parties are responsible for either making the appropriate request in advance or arranging for their own private court reporter. Go to <http://napacountybar.org/court-reporting-services/> for information about local private court reporters. Attorneys or parties must confer with each other to avoid having more than one court reporter present for the same hearing.

“Recording Court proceedings (whether by Zoom’s AI Meeting Summary functionality or by any other means) is PROHIBITED without express permission from a judicial officer. (Cal. Rules of Court, Rule 1.150(c) & (d))

CIVIL LAW & MOTION CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.

City of American Canyon v. Timothy J. Shea et al

20CV001254

**PLAINTIFF CITY OF AMERICAN CANYON’S MOTION FOR DETERMINATION OF
LEGAL ISSUES REGARDING SEVERANCE DAMAGES AND GOODWILL DAMAGES**

TENTATIVE RULING: The motion is GRANTED IN PART and MOOT IN PART. The motion is MOOT as to Issues 1, 4, 5, and 6 (identified below) and GRANTED as to Issues 2 and 3 (identified below).

The moving party failed to include in the notice of this motion proper notice of the Court's tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

A. PROCEDURAL MATTERS

Plaintiff City of American Canyon ("Plaintiff" or "City") moves, pursuant to Code of Civil Procedure section 1260.040, subdivision (a),¹ for a determination of legal and evidentiary issues affecting determination of fair market value. Specifically, the City seeks the following six rulings (hereinafter referred to "Issues"):

- 1) The construction of a center median as part of the Green Island Road Reconstruction and Widening Project ("Project") resulting in the elimination of left turn access into and out of the subject property via the Green Island Road driveway, does not constitute a substantial impairment of access to the subject Property as a matter of law, and thus is not a compensable item of damage that may be considered when valuing severance damages in this action.
- 2) The construction of a center median as part of the Project, which will preclude trucks with a wheel-base of 40 feet or greater from egressing via the Green Island Road driveway, does not constitute a substantial impairment of access to the subject Property as a matter of law, and thus is not a compensable item of damage that may be considered when valuing severance damages in this action.
- 3) The temporary closure and temporary lane reductions on Green Island Road between Paoli Loop Road and Devlin Road, and the temporary traffic detour needed to construct the Project, do not result in a substantial impairment of access to the subject Property as a matter of law, and thus is not a compensable item of damage that may be considered when valuing severance damages in this action.
- 4) The construction of a center median as part of the Project resulting in the elimination of left turn access into and out of the subject property via the Green Island Road driveway, does not constitute a

¹ All subsequent statutory references are to the Code of Civil Procedure unless otherwise specified.

substantial impairment of access to the subject Property as a matter of law, and thus is not a compensable item of damage that may be considered when valuing goodwill damages in this action.

- 5) The construction of a center median as part of the Project, which will preclude trucks with a wheel base of 40 feet or greater from egressing via the Green Island Road driveway does not constitute a substantial impairment of access to the subject Property as a matter of law, and thus is not a compensable item of damage that may be considered when valuing goodwill damages in this action.
- 6) The temporary closure and temporary lane reductions on Green Island Road between Paoli Loop Road and Devlin Road, and the temporary traffic detour needed to construct the Project, do not result in a substantial impairment of access to the subject Property as a matter of law, and thus is not a compensable item of damage that may be considered when valuing goodwill damages in this action.

B. LEGAL STANDARD

“If there is a dispute between plaintiff and defendant over an evidentiary or other legal issue affecting the determination of compensation, either party may move the court for a ruling on the issue. The motion shall be made not later than 60 days before commencement of trial on the issue of compensation. The motion shall be heard by the judge assigned for trial of the case.” (§ 1260.040, subdivision (a).)

Under the Eminent Domain Code, a property owner is entitled to the value of the part taken and any damage to the remainder of the property (i.e. the portion of the parcel not taken). (§ 1263.410.) Damage to the remainder, often referred to as “severance damages,” can come from (1) the severance of the remainder from the part taken, or (2) the construction and use of the project for which the property is taken in the manner proposed by the agency whether or not the damage is caused by a portion of the project located on the part taken. (§ 1263.420.) “[A] showing of substantial impairment is only required when the taking interferes with access to the property from a public street.” (*City of Livermore v. Baca* (2012) 205 Cal.App.4th 1460, 1467.)

C. DISCUSSION

Defendants Tim & Rhonda, LLC and FRG Waste Resources, Inc. J. Shea, (collectively “Shea”) oppose the motion on the grounds that (1) Issues 1, 4, 5, and 6 are moot because Defendants do not seek compensation related thereto, (2) Issue 2 is not subject to the substantial impairment test because Shea has a vested property right in the easement of egress that is being taken by the Project, and therefore, compensation is required, and (3) Issue 3 cannot be determined by this Motion because it requires expert appraisal opinions to determine whether the Project’s construction-related interference diminishes the use, utility, or value of the remainder parcel.

With respect to Issues 1, 4, 5, and 6, the Court orders the motion DENIED AS MOOT. The Court acknowledges the City's argument in Reply that Shea does not contest, and therefore concedes, these Issues. However, the Court understands Shea's argument in Opposition to be that those Issues are not at issue in this action and therefore a ruling on them would be inappropriate. Moreover, given that there is no apparent dispute over those Issues, section 1260.040, which requires a disputed issue, does not appear applicable.

With respect to Issue 2, the Court finds that Plaintiff has established that the construction of a center median as part of the Project, which will preclude trucks with a wheel base of 40 feet or greater from egressing via the Green Island Road driveway, does not constitute a substantial impairment of access to the subject Property as a matter of law because, prior to the Project, trucks with a wheel base of 40 feet or greater cannot *legally* egress via the Green Island Road driveway under Vehicle Code section 21460. (Declaration of Ramada ("Ramada Decl."), ¶ 6, Ex. B.) Shea does not dispute the evidence offered by the City. Shea does, however argue that Vehicle Code section 21460 allows a driver to cross a double yellow line when exiting a driveway. The Court disagrees. Vehicle Code section 21460 provides, in pertinent part:

(a) If double parallel solid white lines are in place, a person driving a vehicle shall not cross any part of those double solid white lines, except as permitted in this section or Section 21655.8.

...

(d) The markings as specified in subdivision (a), (b), or (c) do not prohibit a driver from crossing the marking if (1) turning to the left at an intersection or into or out of a driveway or private road...

This Vehicle Code section allows a driver to cross a double yellow line when turning left at an intersection, turning left into a driveway or private road or turning left out of a driveway or private road. It does not permit a driver to cross a double yellow line when turning right. This makes sense, not only given the plain language of the statute, but from a public safety standpoint.

Shea further argues that, "where, as here, the condemnor takes or extinguishes an *existing* access easement appurtenant to the property, the issue is not impairment of access in the abstract; it is the taking of a vested property right for which compensation is *required*." (Opp., 4:19-21, 5:22-6:4. Emphasis in original.) In other words, Shea argues that the very fact that it has a vested property right in the historic Green Island Road egress by trucks with a wheel-base of 40 feet or greater *mandates* compensation for the taking thereof, regardless of the outcome of the substantial impairment test.

The Court disagrees with Shea's suggestion that the substantial impairment test is inapplicable. However, even under Shea's standard, the result is the same. The vested right which Shea references is a property owner's "right to get into the street upon which the landowner's property abuts and from there, *in a reasonable manner*, to the general system of public streets." (Mem., 8:18-22 [emphasis added], citing *Breidert v. Southern Pac. Co.* (1964) 61 Cal.2d 659, 664.) A property owner, therefore, has no right in egressing his property by a maneuver that the law prohibits because that could not be considered reasonable. (Mem., 8:21-

23.) As discussed, Vehicle Code section 21460 makes it unlawful for trucks with a wheel-base of 40 feet or greater to egress via the Green Island Road driveway. Thus, contrary to Shea's assertion, he has failed to establish that he enjoys any vested right in this specific egress easement, for which Plaintiff's taking establishes his entitlement to compensation.

Based on the foregoing, the Court determines that the construction of a center median as part of the Project, which will preclude trucks with a wheel-base of 40 feet or greater from egressing via the Green Island Road driveway, is not a compensable item of damage that may be considered when valuing severance damages in this action.

With respect to Issue 3, Plaintiff shows that the temporary closure of Green Island Road as part of the construction of the Project will result in a 60-hour, weekend closure requiring vehicles travelling eastbound on Green Island Road to take an approximately 2.4-mile detour around the road closure to access the Property. (Ranada Decl., ¶ 11, Ex. D.) Vehicles travelling westbound on Green Island Road will still be able to access the Property as usual, and access to the Property via the Dodd Court Driveway will be accessible during the entire construction of the Project. (Ranada Decl., ¶ 10.) Plaintiff argues that the 2.4-mile detour and 60-hour duration is the type of circuitry of travel that courts have consistently held non-compensable. (Mem., 10:17-11:13 and Reply, 7:16-9:27, citing cases.)

Shea does not dispute the evidence regarding the extent of interference during construction of the Project. Yet, in a circular argument, Shea contends that the question of compensation for construction-related interference cannot be determined without an expert appraisal opinion to ascertain the interference's impact on the use, utility, and value of the remainder parcel. (Opp., 4:24-5:5, 7:14-21, 7:27-8:2 citing *Baca*, *supra*, 205 Cal.App.4th at 1465-66, §§ 1258.210 *et seq.*, 1263.410, 1263.420.) However, this disregards Plaintiff's main contention that there is no need for further discovery or expert evidence regarding compensation because, as a matter of law, the construction-related interference does not constitute substantial impairment. In response thereto, Shea only attempts to argue that the cases upon which Plaintiff relies are distinguishable from the facts here. (Opp., 8:3-9.)

In *Baca*, the Court of Appeal held that the trial court erred in excluding, by motion in limine, evidence in support of plaintiff's claim for temporary severance damages caused by removal of landscaping for one year and closure of two of four driveways on plaintiff's property for four months. (*Baca* at 1471-1472.) The Court then addressed plaintiff's claim for temporary severance damages caused by impaired access due to a ten-month traffic detour. The Court confirmed that prior to submitting evidence in support of the temporary impair access claim, the trial court must make a preliminary finding of substantial impairment. (*Baca* at 1473.)

The facts in the case at hand are dramatically different than those in *Baca*. Here, the undisputed evidence before the Court is that Green Island Road will be closed in the eastbound direction for one weekend. Cars traveling eastbound will need to take a 2.4 mile detour to access the Property. Access westbound on Green Island Road and via Dodd Court will not be impacted. For this reason, the Court finds that Plaintiff has shown the temporary closure and temporary lane reductions on Green Island Road between Paoli Loop Road and Devlin Road, and the temporary traffic detour needed to construct the Project, do not result in a substantial impairment

of access to the subject Property as a matter of law. (See *Metropolitan Water Dist. of So. California v. Campus Crusade for Christ, Inc.* (2007) 41 Cal.4th 954, 971 [“whether a taking has substantially impaired access to the remaining property is ‘a matter of law’ for the court”].)

Based on the foregoing, the Court determines that the interference described in Issue 3 is not a compensable item of damage that may be considered when valuing severance damages in this action. (*Id.* at 971-72 [noting that the substantial impairment determination is a predicate to an award of severance damages].)

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Dave Van Pelt v. Walmart, Inc. et al

25CV001124

TRANSFER OUT HEARING TO CONFIRM ACCEPTANCE OF CASE BY PLACER COUNTY

APPEARANCE REQUIRED. While Plaintiff filed a Notice of Deposit of Processing Fees for the Change of Venue on April 29, 2026, in which he represented that two checks were deposited for the processing and transfer fees payable to Napa Court and Placer Court, the Napa Court Clerk has recently advised that it has not received any such payment and therefore the transfer of the case has not yet commenced. Plaintiff’s counsel’s appearance is required to provide a status update on the transfer fee payment.

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McGrew Behavior Intervention Services, Inc. v. Israel Delgado

25CV001274

[1] DEFENDANT ISRAEL DELGADO’S MOTION TO STRIKE (ANTI-SLAPP)

APPEARANCE REQUIRED: The Parties are ordered to appear to inform the Court regarding the status of the proceedings and, if appropriate, to reset hearing on the instant motion.

[2] APPLICATION FOR ORDER TO SHOW CAUSE RE PRELIMINARY INJUNCTION

APPEARANCE REQUIRED: The Parties are ordered to appear to inform the Court regarding the status of the proceedings and, if appropriate, to reset the continued hearing on the instant motion.

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Lorena Zuniga Montelongo v. Bianco Winegrowing

25CV001906

DEFENDANT BIANCO WINEGROWING’S MOTION TO COMPEL ARBITRATION AND STAY PROCEEDINGS

TENTATIVE RULING: The matter is CONTINUED to August 12, 2026, at 8:30 a.m. in Dept. A. The Case Management Conference set for July 16, 2026 is also CONTINUED to August 12, 2026, at 8:30 a.m. in Dept. A to coincide with the hearing on this Motion.

- [1] PLAINTIFF ANDRE NAVE-HERNANDEZ’S MOTION TO COMPEL FURTHER RESPONSES FROM DEFENDANT **SRGA RESORT, LP**, TO FORM INTERROGATORIES EMPLOYMENT, SET ONE, REQUEST FOR PRODUCTION, SET ONE, AND SPECIAL INTERROGATORIES, SET ONE, AND FOR SANCTIONS

APPEARANCE REQUIRED: The Court would like to hear from the Parties regarding the instant motion.

Plaintiff Andre Naves-Hernandez moves, pursuant to Code of Civil Procedure, sections 2030.300, subdivision (d), 2031.310, subdivision (h), 2023.030, subdivision (a), and 2023.040, for an order compelling Defendant SRGA Resort LP (SRGA) to produce further responses to Plaintiff’s Form Interrogatories Employment, Set One., Nos. 200.1, 200.4, 200.6, 201.4, 201.5, 201.6, 207.1, 207.2, 211.1, 211.2, 214.1, 214.2, 215.1, 215.2, 216.1, Request for Production, Set One., Nos. 1-12, and Special Interrogatories, Set One, Nos. 1-6. Plaintiff also moves for an award of monetary sanction against SRGA in the amount of \$1,560.00.

- [2] PLAINTIFF ANDRE NAVE-HERNANDEZ’S MOTION TO COMPEL FURTHER RESPONSES FROM DEFENDANT AUBERGE RESORTS, LLC, TO FORM INTERROGATORIES EMPLOYMENT, SET ONE, REQUEST FOR PRODUCTION, SET ONE, SPECIAL INTERROGATORIES, SET ONE, REQUEST FOR ADMISSIONS, SET ONE, SPECIAL INTERROGATORIES, SET TWO, FORM INTERROGATORIES GENERAL, SET ONE, AND FOR SANCTIONS

TENTATIVE RULING: The motion is CONTINUED to August 6, 2026, at 8:30 a.m. in Dept. A. The parties are ordered to engage in additional meet and confer efforts in light of the discussion below. The parties are directed to file, not later than July 31, 2026, either a Joint Supplemental Separate Statement, or respective Supplemental Separate Statements identifying, for the Court, which disputes have been resolved, and for each that remains in contention, the arguments for and against the motion to compel further production, in light of the parties’ meet and confer efforts.

Plaintiff Andre Naves-Hernandez moves, pursuant to California Code of Civil Procedure Sections 2030.300, subdivision (d), 2031.310, subdivision (h), 2023.030, subdivision (a), 2023.040, and 2033.290, for an order compelling Defendant Auberge Resorts, LLC (Auberge), to provide further responses to Plaintiff’s Form Interrogatories Employment, Set One, Nos. 200.1, 200.4, 200.6, 201.4, 201.5, 201.6, 207.1, 207.2, 211.1, 211.2, 214.1, 214.2, 215.1, 215.2, 216.1; Request for Production, Set One, Nos. 1-12; Special Interrogatories, Set One, Nos. 1-6; Request for Admissions, Set One, Nos. 1, 4-6, 9-18, 20-32; Special Interrogatories, Set Two, Nos. 7-29; and Form Interrogatories General, Set One, Nos. 4.1, 12.1, 12.2, 12.3, 12.4, 12.5, 12.6, 12.7, 13.1, 13.2, 17.1. Plaintiff also moves for an award of monetary sanctions against Auberge in the amount of \$1,560.00.

“‘It is a central precept to the Civil Discovery Act of 1986 (§ 2016 et seq.) ... that civil discovery be essentially self-executing. [Citation.]’ [Citation.] A self-executing discovery system is ‘one that operates without judicial involvement.’ [Citation.] Conduct frustrates the goal of a self-executing discovery system when it requires the trial court to become involved in discovery because a dispute leads a party to move for an order compelling a response. [Citation.]” (*Clement v. Alegre* (2009) 177 Cal.App.4th 1277, 1291-1292.)

It appears, from the scope and nature of the present motion, and the parties’ respective arguments, that counsels’ meet and confer efforts have been perfunctory. The parties are directed to redouble those efforts in light of the following.

Plaintiff first contends that Auberge’s initial responses to the subject discovery are improper because they include preliminary statements and general objections. (See Support Memo at 3:11-4:9.) Plaintiff correctly notes that the Civil Discovery Act requires a responding party to respond separately to each interrogatory and to each request for production. It does not necessarily follow, however, that the inclusion of preliminary statements and/or general objections renders an otherwise proper response improper. Plaintiff fails to cite to authority supporting the suggestion that the Court has authority to order a responding party to serve further responses simply because they have included, in responses, superfluous matters and/or objections.

Similarly, Plaintiff contends that Auberge “must withdraw its meritless objections” to the subject discovery. (See Support Memo at 4:10-11.) However, Auberge is entitled to assert whatever objections it feels are appropriate. The question of whether they are meritorious is for the Court, on motion to compel or motion for protective order. Plaintiff fails to cite to authority providing that the Court may order a responding party to withdraw objections – even meritless objections – that are timely and properly asserted.

As Auberge notes in its Responsive Separate Statement, as to most of the subject discovery, Plaintiff does not specifically contend or argue that the responses are insufficient. Rather, Plaintiff repeatedly argues that Auberge’s objections are meritless, and then states, “[p]lease withdraw your objections and confirm that your answer is complete.” (See, *e.g.*, Separate Statement at 8:9-10; see also Responsive Separate Statement at 12:6-7 [“Plaintiff does not take issue with the extent of the substantive response to this interrogatory but rather focuses on the objections that were made”].)

On the other hand, the Court shares Plaintiff’s frustration with Auberge’s failure and refusal simply to state whether it is withholding information or documents based on its asserted objections. The Court notes Auberge’s tendency to assert the same objections, without apparent discrimination, and in boilerplate fashion, to each discovery request. The Court also notes Auberge’s failure to clearly state, through its Responsive Separate Statement, whether, and if so to what extent, it is withholding information based on specific objections. Similarly, Auberge fails to state whether its answers are complete. In fact, Auberge’s Responsive Separate Statement, by asserting the validity of certain objections, strongly suggests that Auberge *is*, in

fact, withholding information based on objections. (See, *e.g.*, Responsive Separate Statement at 12:11-21.)

The Court is sympathetic to Plaintiff's argument that Auberge's responses are evasive in light of the number and boilerplate style of objections asserted, and its unwillingness to clearly state whether the substantive responses are complete. Moreover, Auberge's asserted justifications for many of its objections are strikingly abstract of discussion of the discovery request at issue.

In light of the foregoing, the Court orders the parties to further meet and confer. Auberge is ordered to identify for Plaintiff, in a writing served no later than July 23, 2026, each of the subject discovery requests as to which it is withholding information and/or documents based on an objection. For each, it shall identify the objection(s) and provide a brief argument, *specific to the subject request and the specific objection*, supporting its decision to withhold the information. The parties shall then meet and confer in an attempt to resolve any disputes regarding such withholding.

Finally, the parties shall inform the Court, by filing one or respective Supplemental Separate Statements which of the particular discovery requests remain at issue in advance of the continued hearing.

PROBATE CALENDAR – Hon. Joseph J. Solga, Dept. B (Historic Courthouse) at 8:30 a.m.

Conservatorship of Beverly J. Ribelin

19PR000041

[1] FOURTH ACCOUNT AND REPORT OF CONSERVATOR; PETITION FOR ALLOWANCE OF FEES TO CONSERVATOR OF THE ESTATE AND ATTORNEY FOR CONSERVATOR

[2] BIENNIAL REVIEW

TENTATIVE RULING: The Petition is GRANTED, including fees as prayed. After a review of the matter, the Court finds the Conservator is acting in the best interest of the Conservatee. Thus, the matter is set for a Review – Biennial and for an Accounting in two years on July 18, 2028, at 8:30 a.m. in Dept. B. All accounting documents must be filed at least 30 days prior to the hearing. The Court Investigator shall prepare a biennial investigator report for the next hearing date. The Clerk is directed to send notice to the parties.

The June 03, 2027, Review Hearing is VACATED.

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Conservatorship of Rose Jackson

21PR000029

[1] ACCOUNTING

[2] BIENNIAL REVIEW

TENTATIVE RULING: The matter is CONTINUED to September 03, 2026, at 8:30 a.m. in Dept. B. Conservator is directed to provide notice of the continued hearing to all persons entitled thereto including, Betty Herbert, Russell Reaux, Ellena Ashley and Miles Russell.

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Estate of Erlinda C. Vidal

24PR000297

STATUS HEARING RE: FINAL DISTRIBUTION

TENTATIVE RULING: The matter is CONTINUED to July 29, 2026, at 8:30 a.m. in Dept. B.

CIVIL LAW & MOTION CALENDAR – Hon. Joseph J. Solga, Dept. B (Historic Courthouse) at 8:30 a.m.

Seferino Garcia v. DHR Construction, Inc.

24CV000295

CONFERENCE: STATUS RE: COMPLIANCE HEARING

TENTATIVE RULING: The Court has reviewed the Declaration of Taylor Mitzner filed July 6, 2026, and is satisfied that the terms of the Order Granting Final Approval of Class Action and PAGA Settlement have been satisfied. The action is concluded. There is no need for appearance by the parties.

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****at 9:30 a.m.****

Charleen Wignall – Ewing v. Uegene Armstead et al

23CV000124

[1] DEFENDANT GENE ARMSTEAD’S MOTION FOR SUMMARY JUDGMENT

[2] MOTION TO COMPEL FURTHER RESPONSES AND PRODUCTION OF DOCUMENTS TO REQUESTS FOR PRODUCTION, SET ONE AND SET TWO, AND FOR MONETARY SANCTIONS OF \$10,000.00

TENTATIVE RULING: The Court remains without jurisdiction to rule on matters in the action. The Court CONTINUES hearing on the two pending motions to, and sets an OSC re: Dismissal on, August 14, 2026, at 8:30 a.m. in Dept. B. Petitioner is directed to show cause why the action should not be dismissed, pursuant to Code of Civil Procedure sections 583.410 and 583.420, subdivisions (a)(1) and (2), based on Petitioner's ongoing failure to name and serve the Trust Beneficiaries. Petitioner is granted leave to file and serve, no later than July 30, 2026, a memorandum of no more than 15 pages, together with any supporting declarations, addressing the issue. Respondent is granted leave to file and serve, no later than August 5, 2026, a memorandum of no more than 15 pages addressing the issues and matters raised through Petitioner's brief. If Respondent timely serves and files said brief, then Petitioner is granted leave to file and serve, no later than August 10, 2026, a reply memorandum of no more than 5 pages addressing matters set forth in Respondent's brief. The Clerk is directed to serve Notice of Entry of the instant order on the parties.

Petitioner and Plaintiff Charleen Wignall-Ewing (commenced this action on January 30, 2023, by filing a Civil Complaint against Bruce Miroglio, and Gene Armstead both in his individual capacity and in his capacity as Trustee of the John Scruggs 2014 trusts. Ms. Wignall-Ewing filed a First Amended Complaint (FAC) on April 3, 2023. On August 9, 2023, Mr. Armstead demurred to the FAC. The Court sustained the demurrer by Minute Order of September 6, 2023. Therein, the Court found that "each of Plaintiff's claims against Armstead arise out of alleged injuries she suffered in her capacity as beneficiary of the Subject Trusts. The Court further finds that Armstead's alleged liability for those injuries arise exclusively from his role as Trustee of those trusts." (See *id.* at p. 6.) Based on these findings and a review of the law, the Court ruled that "the provisions of the Probate Code control the parties and the subject matter of the claims asserted through the FAC by setting forth the applicable remedies and the proceedings to be followed. Under these provisions, the Court sitting in Probate has exclusive jurisdiction over proceedings involving the internal affairs of the Subject Trusts. [Citations.]" (*Ibid.*)

On September 20, 2023, Ms. Wignall-Ewing filed a Second Amended Complaint (SAC). Through the SAC, Ms. Wignall-Ewing asserted, for the first time, a claim for breach of trust, arising under the Probate Code, against Mr. Armstead. On January 22, 2024, Ms. Wignall-Ewing filed a Third Amended Complaint. The TAC asserted only the single cause of action for Breach of Trust, arising under the Probate Code, against Mr. Armstead in his capacity as Trustee, and a single cause of action for negligence against Mr. Miroglio.²

On November 1, 2024, Mr. Armstead filed his first Motion for Summary Judgment on the TAC (MSJ 1). Following hearing on March 14, 2025, the Court took MSJ 1 under submission. By Order After Hearing filed on March 21, 2025, the Court stated that "[d]uring oral argument, [counsel for Mr. Armstead] Mr. Queally argued, for the first time, that the Court lacked jurisdiction due to a failure, by Plaintiff, to comply with the Probate Code's notice requirements. [¶] Ordinarily, the Court would not entertain arguments raised for the first time at hearing. However, because the argument implicates the Court's jurisdiction to rule on the motion, the Court finds it appropriate to consider it, after affording the parties the opportunity to

² By Order of March 21, 2025, the Court granted Mr. Miroglio's motion for summary judgment. Thus, Mr. Miroglio is no longer a party to the action.

address the issue fully.” The Court then set a schedule for further briefing on the jurisdictional issue.

On April 3, 2025, Mr. Armstead timely filed a Supplemental Brief. Therein, Mr. Armstead noted that there was no proof in the Court’s files that any of the other beneficiaries to the Trust had been served with Summons and a copy of any of the Complaints in the action. Mr. Armstead argued that this failure constituted a denial of these beneficiaries’ due process rights, and deprived the Court of its jurisdiction to make any rulings in the matter. Ms. Wignall-Ewing did not file a Supplemental Brief.

On May 21, 2025, the Court issued an Order After Hearing on Mr. Armstead’s MSJ 1. The Court, again, found that “[t]he Probate Code governs Petitioner’s current claims against Respondent Eugene Armstead” and that “[t]he Court will treat the Complaint against Eugene Armstead as a Probate Petition subject to the rules of the Probate Code *which include notice requirements particular to Probate matters.*” (*Id.* at p. 1. Italics added.) The Court concluded that it “has jurisdiction over the claims against Respondent Eugene Armstead only after the notice requirements are met.” (*Id.* at p. 2.)

On April 22, 2026, Mr. Armstead filed a second Motion for Summary Judgment on the TAC. Through her Opposition, Ms. Wignall-Ewing refers to the May 21, 2024, Order After Hearing. She then states, “Probate notice requirements are found in Probate Code sections 17201 and 17203. They require Wignall to state the names and addresses of each beneficiary entitled to notice in her Petition in order to commence the proceeding. Even though the court ruled that Probate notice requirements had not been met, Wignall did not amend her pleading to state the names of the interested parties. To this day, there is no pleading that identifies who the interested parties are in compliance with section 17201. According to the plain meaning of section 17201, this proceeding has not commenced.” (Opposition at 5:11-18.)

The Court agrees. The Court further notes that there remains no proof of service on any of the other beneficiaries in the Court’s file. Based on the foregoing, the Court remains without jurisdiction to rule on the pending motions.

The significant delay, by Petitioner, in putting the action at issue, however, strongly suggests that she is using the litigation process for an improper purpose. The Court, therefore, sets the matter for an Order to Show Cause why the Court should not dismiss the action pursuant to Code of Civil Procedure sections 583.410 and 583.420, subdivisions (a)(1) and (2). Petitioner is granted leave to file and serve, no later than July 30, 2026, a memorandum of no more than 15 pages, together with any supporting declarations, addressing the issue. Respondent is granted leave to file and serve, no later than August 5, 2026, a memorandum of no more than 15 pages addressing the issues and matters raised through Petitioner’s brief. If Respondent timely serves and files said brief, then Petitioner is granted leave to file and serve, no later than August 10, 2026, a reply memorandum of no more than 5 pages addressing matters set forth in Respondent’s brief.